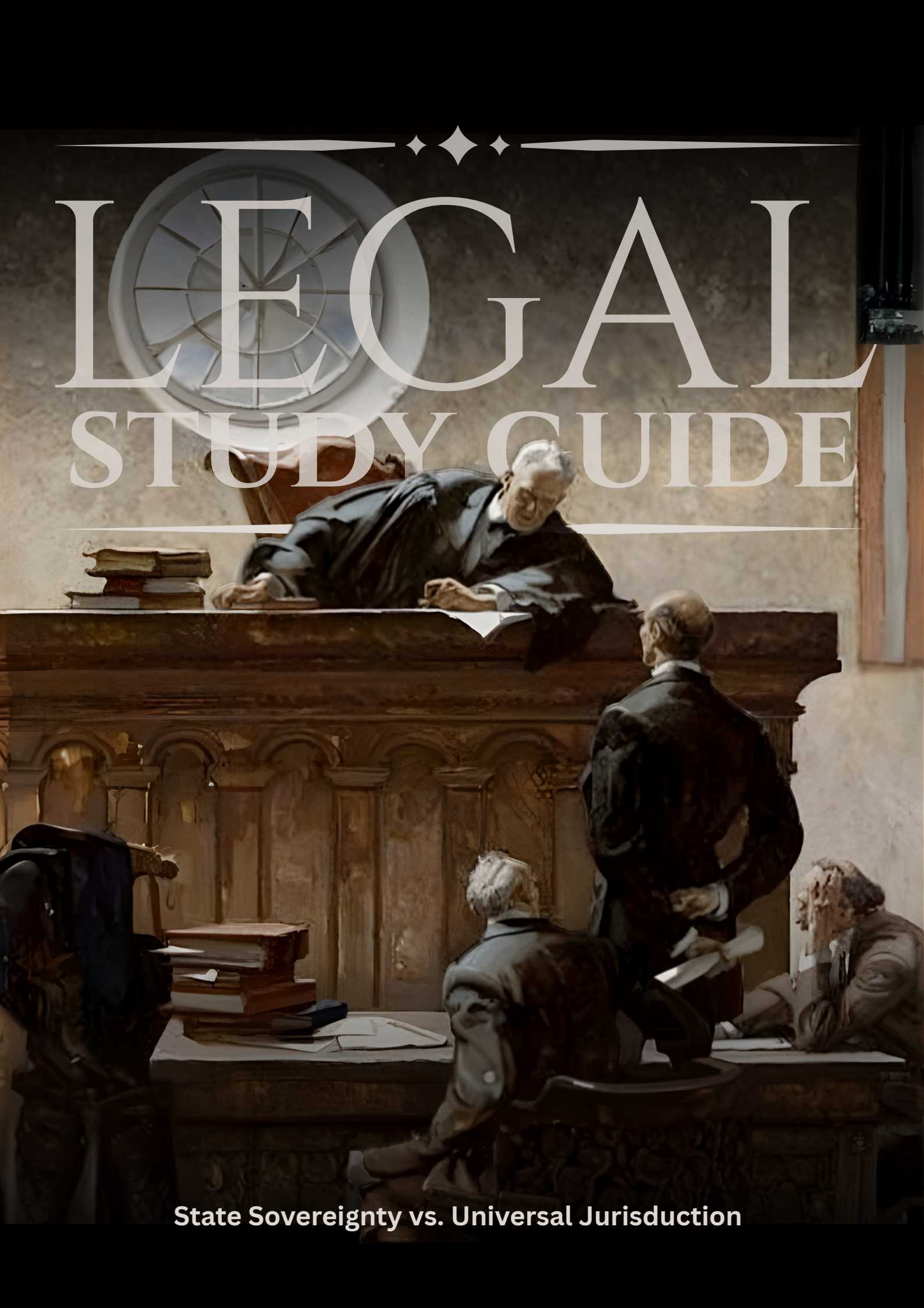




LEGAL STUDY GUIDE

State Sovereignty vs. Universal Jurisdiction

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1. Letter from the Secretary General

Dear Delegates,

From the very beginning, MOSTRAMUN was never meant to be simply another conference. We wanted it to become a place filled with ambition, curiosity, and genuine human connection. A place where diplomacy feels sincere, where discussions carry meaning, and where people feel encouraged to share their voices without fear of being inexperienced or imperfect.

Because MUN has never been only about resolutions or policy debates.

It is about discovering confidence in moments where your voice shakes but you choose to speak anyway. It is about listening to perspectives different from your own and leaving the room with a broader understanding of both the world and yourself. Sometimes, the most meaningful parts of conferences are not found in formal sessions at all, but in the conversations between the people you meet, the ideas you carry with you, and the realization that growth often begins outside your comfort zone.

As Secretary-General of Mostramun'26, I would like to sincerely thank every delegate, advisor, chair, and member of our organization team whose dedication made this conference possible. MOSTRAMUN'26 is shaped by the people within it, and your presence is what gives this conference its spirit.

It is truly an honor to welcome you all to MOSTRAMUN'26, and I hope this conference becomes an experience that inspires, challenges, and stays with you long after it comes to an end.

Sincerely,
Melek Mimar
Secretary-General of MOSTRAMUN'26

2. Letter from the Under Secretary-General

Hello, Honorable Delegates of MOSTRAMUN'26. My name is Atahan Gider, a senior student at Bahçeşehir Koleji, and I am ecstatic to be your Under-Secretary General of GA:6 LEGAL. I would like to extend my sincere gratitude to the Academic Assistant, Yağız Dikmen, and the Committee Directors for their invaluable dedication and hard work.

As we gather at MOSTRAMUN'26, we are confronted with one of the most enduring tensions in international law: the conflict between State Sovereignty and Universal Jurisdiction. On one hand, sovereignty remains the cornerstone of the international order — the principle that each state holds supreme authority within its own borders. On the other, universal jurisdiction challenges this notion by asserting that certain crimes are so grave that any state, regardless of territorial connection, may hold perpetrators accountable. As delegates of GA:6 LEGAL, you will wrestle with where to draw this line — balancing a nation's right to govern itself against the collective moral imperative to pursue justice without borders.

I urge each of you to approach this agenda with both intellectual rigor and genuine empathy. Behind every legal argument lies a human story — a victim seeking justice, a state asserting its dignity, or a community demanding accountability. Let us be bold yet thoughtful, principled yet pragmatic. May MOSTRAMUN'26 be a forum where meaningful debate yields frameworks worthy of the values we all share.

Thank you, and I wish you all a productive and inspiring conference.

3. Introduction to the Committee

The Sixth Committee of the United Nations General Assembly, also known as the Legal Committee, is the primary forum for considering legal matters within the UN framework. One of the General Assembly's six principal committees, it deals with issues regarding international law and cooperation between states in the law field. All UN Member States have the right to be represented in this committee, a fact that makes it one of the most universal legal debate forums in the world.



The Legal Committee is convened annually in New York during the regular session of the General Assembly, usually after the General Debate. In the course of these sessions, the committee deals with a broad agenda of issues relating to the codification and progressive development of international law, the promotion of the rule of law and universal jurisdiction, the legal response to counter-terrorism, the status of diplomatic and consular relations, and the assurance of the protection of human rights by legal means.

One of the key functions of the Committee is to address emerging challenges of the international world by considering and establishing international law standards in line with the evolving political, technological, and social conditions of the international community. Its activity over recent years has introduced new, controversial issues such as cybersecurity, space law, climate liability, and the regulation of emerging technologies to its agenda.

With every advancing step of technology, the Sixth Committee stands at a crossroads, torn between the rapid pace of technological progress and the measured, incremental pace of international legal developments. It has to ensure that technology is used for human welfare without undermining the rights, security, or sovereignty of people and states. To delegates, it means grappling with new legal challenges and forging creative legal solutions that will stand the test of time, progress, and politics.

4. Introduction to the Agenda Item

State sovereignty is one of the most fundamental principles of international law, enshrined in the United Nations Charter under Article 2(1), which establishes the sovereign equality of all Member States. This principle holds that states are the supreme authority within their own territories, immune from external interference in their domestic affairs, and entitled to conduct their own legal and political systems without outside dictation. Against this foundational pillar of international order stands the doctrine of universal jurisdiction — a legal principle that allows, or in some formulations obligates, any state to investigate, prosecute, and punish individuals who commit certain heinous

international crimes, regardless of where those crimes occurred, who the victims were, or the nationality of the perpetrator. The tension between these two principles sits at the very heart of contemporary international legal discourse and constitutes one of the most actively debated topics in the United Nations Sixth Committee (Legal), where it has been a standing agenda item since the African Group first requested its inclusion in 2009, citing widespread concern over the doctrine's abuse and uncertain scope.

At its core, the debate over state sovereignty versus universal jurisdiction forces the international community to grapple with a fundamental moral and legal question: when, if ever, does the nature of a crime become so grave that it transcends the boundaries of the state where it occurred and demands a response from the entire international community? Proponents of robust universal jurisdiction argue that crimes such as genocide, war crimes, crimes against humanity, and torture are offenses not merely against specific individuals or nations, but against all of humanity—what international law terms "erga omnes obligations"—that every state shares the duty to combat. These advocates contend that permitting states to shelter perpetrators of mass atrocities behind the shield of sovereignty creates dangerous zones of impunity and undermines the moral fabric of international law itself. Organizations such as Amnesty International and Human Rights Watch have long championed the principle precisely because they view it as the last line of defense against those who exploit state structures to commit unspeakable crimes with the expectation that no jurisdiction will ever reach them.

Critics, particularly from the Global South and the African continent, counter that universal jurisdiction — especially as exercised by powerful Western states against officials from developing nations — functions as a form of selective geopolitical pressure, targeting certain regions while immunizing others from accountability. The African Union has been consistent and vocal in articulating that universal jurisdiction has been weaponized in a politically motivated and racially selective manner, with European courts issuing arrest warrants primarily against African leaders while atrocities committed or sanctioned by powerful states in other regions of the world go unpunished and uninvestigated. This perception of double standards has generated deep friction between the Global South and the international criminal justice architecture, raising profound questions about the legitimacy, impartiality, and credibility of the entire system. The Non-Aligned Movement, representing a large majority of United Nations Member States, has consistently emphasized the need for any exercise of universal jurisdiction to be consistent with the principles of sovereign equality, non-interference in internal affairs, and the immunity of sitting state officials.

The Sixth Committee of the United Nations General Assembly has been the principal multilateral forum for this debate. Year after year, delegates from across the international community wrestle with the same cluster of unresolved problems: What crimes qualify for universal jurisdiction? Under what conditions can states invoke it? How does it interact with sovereign immunity? How can it be prevented from being politically manipulated? What role should the International Law Commission play in codifying or clarifying the principle? The fact that these questions remain fiercely contested

after more than a decade of discussion in the Sixth Committee reflects not only the legal complexity of the topic but also the deep geopolitical fault lines that run through international justice. This study guide aims to equip delegates with the comprehensive legal, historical, and political knowledge necessary to engage constructively with this agenda item and contribute meaningfully to the quest for a principled, impartial, and effective framework governing universal jurisdiction in the modern international order.

5. Definitions and Key Terms

State Sovereignty: The supreme authority of a state within its territorial boundaries, including the exclusive right to govern its people and territory without interference from other states. It is codified in Article 2(1) of the UN Charter, which affirms the sovereign equality of all Member States.

Universal Jurisdiction: A principle of international law that permits or requires a state to claim criminal jurisdiction over individuals accused of committing certain grave international crimes regardless of any territorial, nationality, or victim-nationality connection to the prosecuting state.

Erga Omnes: A Latin term meaning 'towards all' or 'in relation to everyone.' In international law, it refers to obligations owed by states to the entire international community, not merely to individual states. Crimes subject to universal jurisdiction are considered erga omnes in nature.

Jus Cogens: Peremptory norms of international law from which no derogation is permitted. These are fundamental principles that are binding on all states under any circumstances and include prohibitions against genocide, slavery, torture, and crimes against humanity.

Crimes Against Humanity: Widespread or systematic attacks directed against any civilian population, including acts such as murder, extermination, enslavement, deportation, torture, rape, and persecution. Defined in Article 7 of the Rome Statute of the International Criminal Court.

War Crimes: Serious violations of international humanitarian law committed during armed conflict, including grave breaches of the Geneva Conventions. These include willful killing of civilians, torture, the taking of hostages, and the use of prohibited weapons.

Genocide: Acts committed with the intent to destroy, in whole or in part, a national, ethnic, racial, or religious group. Defined and prohibited by the Convention on the Prevention and Punishment of the Crime of Genocide (1948) and codified in Article 6 of the Rome Statute.

Territorial Jurisdiction: The primary basis of criminal jurisdiction whereby a state exercises legal authority over crimes committed within its own territory, including on its registered ships and aircraft.

Nationality Jurisdiction (Active Personality): A basis for criminal jurisdiction allowing a state to prosecute its own nationals for crimes committed anywhere in the world, regardless of where the offense took place.

Passive Personality Jurisdiction: Jurisdiction asserted by a state to prosecute foreigners who commit crimes abroad against its own nationals. Historically controversial, it is now accepted for certain serious crimes.

Extraterritorial Jurisdiction: The exercise by a state of its legal authority beyond its own borders, often on grounds of nationality, passive personality, or protective jurisdiction. Distinct from universal jurisdiction in that it requires some link between the state and the offense.

State Immunity / Sovereign Immunity: The doctrine of customary international law that protects states and their representatives from being subjected to the jurisdiction of foreign domestic courts. Incumbent heads of state, heads of government, and foreign ministers enjoy full immunity from foreign criminal jurisdiction.

Diplomatic Immunity: The protection afforded to accredited diplomatic agents and their immediate families under the Vienna Convention on Diplomatic Relations (1961), exempting them from the civil and criminal jurisdiction of the receiving state.

Impunity: The exemption from punishment or accountability for perpetrators of serious crimes. Preventing impunity is a central justification for universal jurisdiction, as it ensures that no haven exists for those who commit the gravest violations of international law.

Customary International Law: Rules of international law that derive from the consistent and general practice of states accompanied by a sense of legal obligation (*opinio juris*). Many of the foundational rules governing universal jurisdiction exist as customary international law.

International Criminal Court (ICC): A permanent intergovernmental international tribunal established under the Rome Statute in 2002, seated in The Hague. It has jurisdiction over genocide, crimes against humanity, war crimes, and the crime of aggression when national courts are unwilling or unable to act.

Non-Intervention Principle: A corollary of state sovereignty, providing that no state may interfere in the internal or external affairs of another state. It is enshrined in Article 2(7) of the UN Charter and is frequently invoked against exercises of universal jurisdiction seen as politically motivated.

Mutual Legal Assistance Treaties (MLATs): Bilateral or multilateral treaties through which states agree to cooperate in the gathering and exchange of evidence and information in criminal matters. MLATs are a key instrument of international cooperation in the enforcement of universal jurisdiction cases.

6. Historical Development

The intellectual and legal origins of universal jurisdiction are ancient, though its practical application and modern codification are products of the twentieth century. The earliest and most uncontested form of universal jurisdiction arose in response to piracy on the high seas. Since at least the seventeenth century, pirates have been classified under international law as *hostis humani generis*, enemies of all mankind, because they operated outside the territorial jurisdiction of any state, posed a universal threat to maritime commerce, and could not be effectively prosecuted under any conventional territorial or nationality-based jurisdictional framework. This meant that any state that captured a pirate could lawfully try and punish that individual, regardless of the pirate's nationality or the location of the offense. The universality of piracy jurisdiction was relatively uncontroversial precisely because it arose in the context of stateless actors operating in international spaces where no sovereign claim could be asserted. It did not threaten state sovereignty in the same way that later applications would, because pirates by definition operated outside and against the sovereign order.

The slave trade emerged as the second major domain of proto-universal jurisdiction, driven primarily by Great Britain's nineteenth-century campaign to suppress the transatlantic slave trade through naval enforcement. British warships asserted the right to board and search suspected slave vessels of other nations, a practice that was diplomatically contentious but gradually accepted through bilateral treaties. The suppression of piracy and the slave trade established the conceptual foundation that certain offenses so fundamentally violated the common interests of all nations that any state could claim authority to act against their perpetrators. This foundation, however, remained relatively narrow until the cataclysm of the Second World War fundamentally transformed international legal thinking about individual accountability for state-sponsored atrocities.

The Nuremberg Trials of 1945-1946, convened by the victorious Allied Powers to prosecute Nazi leaders for crimes against peace, war crimes, and crimes against humanity, represent the most consequential moment in the development of international criminal law and the doctrine of universal jurisdiction. While the Nuremberg International Military Tribunal (IMT) derived its authority from an inter-Allied agreement rather than from a purely universal jurisdictional claim, the principles it articulated — most importantly that individuals, including heads of state, could be held criminally responsible under international law — had revolutionary implications. The United Nations General Assembly affirmed the Nuremberg Principles in Resolution 95(I) of 1946, encouraging their development in international law and laying the groundwork for decades of subsequent codification efforts. Similarly, the Tokyo Trials prosecuted Japanese war criminals and further established the norm of individual accountability for international crimes.

The Genocide Convention of 1948 and the four Geneva Conventions of 1949 represented the first major treaty-based affirmations of universal jurisdiction. The Geneva Conventions imposed on all High Contracting Parties an obligation to search for persons alleged to have committed or ordered grave breaches of the Conventions and to bring them before their own courts or extradite them for trial, a formulation of the *aut dedere aut judicare* principle that would become a cornerstone of universal jurisdiction in treaty law. The 1948 Genocide Convention, while technically calling for prosecution before a competent tribunal in the territory where the act was committed, was interpreted over time to allow broader jurisdictional reach, particularly as the prohibition of genocide came to be recognized as a *jus cogens* norm and an *erga omnes* obligation under customary international law.

The landmark case of Attorney General of Israel v. Eichmann (1961) brought universal jurisdiction dramatically into public view. Adolf Eichmann, a senior SS officer who played a central organizational role in the Holocaust, had evaded justice after the war by living under a false identity in Argentina. Israeli intelligence agents abducted him in Buenos Aires, and he was transported to Israel for trial. While Argentina protested the violation of its sovereignty, the Israeli Supreme Court upheld jurisdiction because Eichmann's crimes, genocide and crimes against humanity, were offenses against the laws of nations and against humanity as a whole, justifying any state's claim to try him. The Eichmann trial, which resulted in Eichmann's execution in 1962, powerfully demonstrated that universal jurisdiction could be applied to crimes against humanity even in the absence of a conventional link between the accused and the prosecuting state.

The final decade of the twentieth century witnessed an acceleration of universal jurisdiction's expansion. The conflicts in the former Yugoslavia and Rwanda produced mass atrocities on an unprecedented scale and prompted the United Nations Security Council to establish two *ad hoc*

international criminal tribunals: the International Criminal Tribunal for the former Yugoslavia (ICTY) in 1993 and the International Criminal Tribunal for Rwanda (ICTR) in 1994. These institutions demonstrated that the international community possessed both the will and the institutional capacity to prosecute individuals for the gravest international crimes. Their existence, combined with growing civil society pressure and the work of the International Law Commission, provided the political impetus for negotiating a permanent international criminal court. The Rome Statute, adopted in 1998 and entering into force in 2002, established the International Criminal Court — a permanent tribunal with jurisdiction over genocide, crimes against humanity, war crimes, and the crime of aggression — and embedded the principle of complementarity, reserving ICC intervention for cases where national courts fail to act. Alongside these international developments, several European states, most notably Belgium, Spain, and Germany, enacted sweeping domestic legislation authorizing their courts to exercise universal jurisdiction over a wide range of international crimes, sparking a new wave of controversies that brought the tension with state sovereignty to a breaking point.

7. Tensions Between Sovereignty and Accountability

The idea of sovereignty protects countries' borders and their right to make decisions within those borders. Sovereignty has two aspects: one that deals with laws and the other with norms. Legally, it defines what a country can control; normatively, it supports self-determination and political independence. However, the development of criminal law after World War II, which led to the creation of special tribunals and the International Criminal Court (ICC), changed the way we think about sovereignty. It established that some crimes affect the international community.

Universal jurisdiction is a result of this change: if crimes are serious enough to concern all countries, then the international community can allow prosecutions beyond the rules. There's a tension here. Sovereignty assumes that countries won't interfere with each other while accountability mechanisms assume that there's a shared interest in preventing and punishing wrongdoing.

In practice, this tension shows up in areas. One is legitimacy: domestic prosecutions are legitimate because they come from consent and local relevance; foreign prosecutions on the other hand, may face questions about legitimacy and cultural sensitivity. Another area is competence: domestic legal systems may not have the laws, evidence rules or institutions to prosecute mass crimes, but foreign prosecution may be seen as an intrusion and as undermining domestic legal development.

Yet sovereignty is not absolute. The international legal system has accepted limitations such as treaty obligations, UN Charter norms, and jus cogens. The emergence of jurisdiction reflects a normative evolution anchored in the idea that when states systematically fail to prosecute, the international community must have tools to ensure accountability.

8. Risks of Political Abuse and Selective Enforcement

One of the main criticisms leveled at the concept of universal jurisdiction is the fact that it has the potential for political abuse. The fact that national courts are in charge of the application and implementation of universal jurisdiction makes this a real threat. Governments can be selective in the application of the law and ignore cases involving political allies while pursuing cases involving political opponents.

An example of this is the selective nature of the implementation of the law. In theory, the law is meant to be applied universally and equally to all perpetrators of international crimes. However, in practice, this is not always the case. Politics and political power are real forces in the implementation and application of the law. For instance, the fact that governments are more likely to pursue cases involving perpetrators from weaker nations as opposed to stronger nations. Pursuing cases involving high-ranking officials from powerful nations has the potential for diplomatic fallout and political and economic sanctions. It is possible for the law to be applied selectively in such a manner that it favors the political class.

Another issue is the fact that universal jurisdiction can sometimes be used as a tool for international political conflicts. In some instances, governments support universal jurisdiction because they feel it will affect the image of other nations or political leaders negatively. This means that the justice system will be perceived as being controlled by political forces rather than justice. This has the potential to undermine the international justice system. If people feel that universal jurisdiction is not applied in a just and impartial manner, they may not have confidence in the system. This means that the victims of crimes may not feel justice has been served because some criminals have been punished while others have not because of political reasons.

There is also the fact that political bias in the application of universal jurisdiction can lead to international conflicts. States may feel that the justice system is targeting their leaders and may react negatively. This can affect international relations because the state may not cooperate with the state whose leaders have been targeted by the justice system. In spite of all these issues, experts believe that political abuse does not mean that universal jurisdiction must be ignored. Rather, more measures must be taken to avoid such risks while using this principle in a more efficient manner. Therefore, by enhancing legal standards, it is easier for states to minimize the risks associated with political abuse while still using this principle in the fight against impunity.

9. Role of International and Domestic Courts

The International Court of Justice (ICJ), the principal judicial organ of the United Nations, has played a pivotal role in clarifying the legal boundaries of universal jurisdiction, particularly in relation to state immunity. The most consequential ICJ ruling in this field came in the Case Concerning the Arrest Warrant of 11 April 2000 (Democratic Republic of the Congo v. Belgium), decided in February 2002. In that case, Belgium had issued an international arrest warrant against Abdulaye Yerodia Ndombasi, then the incumbent Foreign Affairs Minister of the Democratic Republic of Congo, charging him with war crimes and crimes against humanity under Belgium's sweeping 1993 universal jurisdiction law. The ICJ found, by thirteen votes to three, that the issuance and international circulation of the arrest warrant violated Belgium's legal obligations toward the DRC by failing to respect the immunity from criminal jurisdiction and the inviolability that the incumbent minister enjoyed under customary international law. The Court explicitly held that no distinction could be drawn between acts performed in an official capacity and acts performed in a private capacity, meaning that sitting foreign ministers are absolutely immune from foreign criminal proceedings regardless of the nature of the alleged conduct.

While the Congo v. Belgium ruling did not definitively resolve the question of whether domestic courts may exercise universal jurisdiction in principle — the Court declined to rule on that issue since the DRC had withdrawn that ground in its final submissions — the judgment articulated important caveats that have shaped subsequent debate. The ICJ noted that there are four categories of situations in which the immunity of a sitting or former foreign minister does not prevent prosecution: prosecution in the minister's own state; prosecution after the state waives immunity; prosecution after the minister has left office for acts committed in a private capacity; and prosecution by international criminal courts where they have jurisdiction. These four exceptions sketched the outer limits of immunity doctrine while leaving substantial gaps in accountability for the period during which high-ranking officials remain in office. Several ICJ judges issued separate and dissenting opinions on the question of universal jurisdiction itself, reflecting the deep divisions within the international legal community about the scope and legitimacy of the principle.

The International Criminal Court represents the most institutionalized expression of international criminal accountability, though its relationship to universal jurisdiction is more complex than is often appreciated. The Rome Statute does not grant the ICC universal jurisdiction in the classical sense; rather, the Court's jurisdiction is consent-based, arising only when crimes are committed on the territory of a state party, by a national of a state party, or when the UN Security Council refers a situation. This consent-based limitation means that nationals of the approximately seventy non-party states — including the United States, Russia, China, India, and Israel — enjoy substantial protection from ICC prosecution unless they commit crimes in the territory of a state party. The Security

Council's referral mechanism theoretically allows the ICC to reach non-party states, but in practice the veto power of the five permanent members has largely neutralized this option, as Russia and China have blocked referrals for situations where powerful states have political interests. The ICC's first conviction came in 2012 in the case of Thomas Lubanga Dyilo for the use of child soldiers in the Democratic Republic of Congo; it has since issued notable arrest warrants against Russian President Vladimir Putin and Israeli Prime Minister Benjamin Netanyahu.

Domestic courts exercising universal jurisdiction have in recent years developed a growing body of jurisprudence that complements and in some respects surpasses what international tribunals have achieved. Germany's 2002 Code of Crimes against International Law (Völkerstrafgesetzbuch or VStGB) provides perhaps the most comprehensive domestic framework for universal jurisdiction, incorporating all ICC crimes and enabling prosecution regardless of any connection to Germany. German courts have in recent years used this law to try Syrian officials for crimes against humanity committed during the Syrian civil war — a situation where the ICC lacks jurisdiction because Syria is not a party to the Rome Statute and the Security Council failed to refer the situation due to Russian and Chinese vetoes. France, Sweden, Finland, and the Netherlands have also pursued accountability for Syrian atrocities through their domestic courts. These cases illustrate how domestic universal jurisdiction can serve as a genuine alternative to dysfunctional international mechanisms, though they also raise questions about whether accountability for one of the world's worst ongoing conflicts should be dispersed across multiple national court systems applying different standards.

10. Perspectives of State and Non-State Actors

The perspectives of state actors on universal jurisdiction are deeply shaped by their geopolitical position, historical experience, and the extent to which they perceive themselves as potential objects or subjects of the principle. Western European states, particularly those with long traditions of human rights advocacy and strong civil society sectors, have generally been the most enthusiastic proponents of expansive universal jurisdiction. States such as Germany, Belgium, Spain, France, the Netherlands, and the Nordic countries have enacted domestic legislation authorizing broad claims of universal jurisdiction and have been willing to pursue cases against foreign nationals and officials over the strong objections of their home states. For these states, universal jurisdiction is an expression of the post-World War II commitment to the idea that mass atrocities can never be purely internal affairs, and that the rule of law demands accountability regardless of political considerations. They tend to emphasize universal jurisdiction's role in closing the impunity gap and deterring future atrocities.

The United States has maintained a complex and often contradictory relationship with international criminal accountability. It was a strong supporter of the Nuremberg Trials and the creation of the ICTY and ICTR, but it famously refused to ratify the Rome Statute and has consistently opposed the ICC's exercise of jurisdiction over American nationals. During the George W. Bush administration, the United States signed bilateral agreements with dozens of states seeking immunity for American nationals from ICC jurisdiction, and the Trump administration imposed sanctions on ICC officials who investigated alleged American war crimes in Afghanistan. The United States' position has been broadly consistent: it supports international accountability in principle and through selective multilateral mechanisms, but resists any international institution or foreign domestic court asserting jurisdiction over American nationals, citing concerns about due process standards, the independence of the prosecutor, and the risk of politically motivated prosecutions. This stance has made the United States a target of criticism for double standards from states that see Washington as advocating rules that it refuses to apply to itself.

Developing states and the Non-Aligned Movement have articulated a nuanced position that simultaneously affirms the importance of combating impunity and raises serious concerns about the selective and politically motivated application of universal jurisdiction. The Non-Aligned Movement has consistently emphasized that sovereign equality and non-interference in the internal affairs of states must be respected in the application of the principle, that the immunity of high-ranking officials should be fully upheld, and that universal jurisdiction should not replace other jurisdictional bases but should be available only as a last resort when territorial and nationality-based jurisdiction has genuinely failed. Many developing states have domestic legislation reflecting these principles and have contributed significantly to the body of international criminal law through their participation in treaty regimes. Their objections are not to universal jurisdiction per se, but to the selective, politically motivated, and often unilateral manner in which it has been exercised by more powerful states.

Non-state actors, including international human rights organizations, academic institutions, and victims' groups, have played a crucial role in shaping both the doctrine and the practice of universal jurisdiction. Amnesty International and Human Rights Watch have been among the strongest advocates for expansive universal jurisdiction, arguing that the commitment to ending impunity for genocide, war crimes, and crimes against humanity requires that domestic courts of all states be willing and empowered to act. Victims' organizations from states that have experienced mass atrocities — including survivors of the Rwandan genocide, the Guatemalan civil war, and the Syrian conflict — have been instrumental in initiating or supporting universal jurisdiction cases in foreign courts, often as the only available avenue for justice when domestic and international mechanisms have failed. The Princeton Principles on Universal Jurisdiction, drafted in 2001 by a group of eminent international legal scholars, provided an important academic framework arguing that universal

jurisdiction is already established in customary international law for the gravest crimes and that states have not only the right but the duty to exercise it. Academic institutions and think tanks continue to produce empirical research on the expanding practice of universal jurisdiction that informs policy debates in the Sixth Committee and beyond.

11. Challenges in Enforcement and Cooperation

Even when a state has both the legal authority and the political will to exercise universal jurisdiction, translating that authority into effective accountability faces formidable practical challenges. The most fundamental challenge is enforcement: universal jurisdiction cases invariably depend on the presence of the accused within the prosecuting state's territory, either through voluntary presence, extradition, or — in the most controversial cases — rendition. States cannot compel the presence of accused persons in the same way that national courts can compel the appearance of their own nationals. When an accused individual resides in a state that refuses to extradite — whether because it denies the legitimacy of the proceedings, lacks an extradition treaty with the prosecuting state, or protects its own nationals from extradition as a matter of constitutional law — the entire edifice of a universal jurisdiction prosecution may collapse into a symbolic indictment that serves no practical purpose. This is particularly problematic when the accused continues to hold high office in their home state, meaning that even the existence of an arrest warrant may effectively be confined to preventing travel to states that would be willing to execute it.

One of the biggest challenges facing the courts is the collection of evidence. The crimes are often committed in areas where the courts cannot access. The documents may have been destroyed, making the collection of evidence difficult. The courts are often left with only the witness accounts or digital evidence, which may not always be reliable. Witness accounts are a crucial source of evidence, but they can also pose a problem for the courts. The witnesses may not speak the same language as the judges, and they may not be from the same country. The witnesses may also fear the perpetrators of the crimes, which may cause them not to give evidence if they are not protected. The arrest of suspects is another significant challenge. There are a number of suspects accused of serious crimes still in their home countries. If the host country does not cooperate with the foreign court, it is almost impossible to arrest the suspects. In most instances, the suspects can only be prosecuted if they travel to another country where the court can take legal action against them.

Another challenge facing universal jurisdiction courts is the diversity of laws among countries. There are varying laws on evidence and the procedures to be followed. This diversity can complicate matters when courts have to cooperate in the sharing of information or the extradition of suspects.

Due to the challenges facing universal jurisdiction courts, international cooperation is essential. This can be achieved by the countries involved sharing information and cooperating where necessary. This can only be achieved if the countries have the necessary resources to make the situation easier.

12. Possible Policy Approaches and Safeguards

In order to achieve a delicate balance between sovereignty and accountability, appropriate policy instruments have to be devised to ensure credible prosecutions without compromising sovereignty and leading to political mischief or diplomatic disputes. The following suggestions can be considered in devising policy instruments.

Triggers for Universal Jurisdiction

It is suggested that statutory triggers be clearly identified to limit universal jurisdiction only in cases where there is enough evidence of very serious crimes (such as genocide) or where the accused has been present on the territory of a given state, or there is an obvious connection with the state in question through its nationals or neutrality.

Mechanisms of Exhaustion or Complementarity

Based on the experience of the International Criminal Court's complementarity mechanism, the initiation of national criminal actions against a perpetrator in a case of a serious international crime could depend upon whether there were genuine domestic proceedings or not (such as proof of unwillingness or inability of a state to investigate the situation).

International Oversight and Peer Review

The creation of review bodies composed of legal experts, civil society and representatives of other states reviewing the decision of the prosecutor in cases of international crime would promote transparency. While maintaining the independence of prosecutors, peer review could identify politically suspect cases and help promote good practice.

Procedural Safeguards for a Fair Trial and Due Process

Guaranteeing consistent compliance with fair trial guarantees (representation by an attorney, open hearings, appeals) is critical for the legitimacy of the system. Procedural harmonization, through model laws and international guidelines, would remove procedural barriers and minimize reversals on appeal.

Limiting Immunity Exceptions

It might be possible to achieve international agreement limiting immunities for certain types of crimes. While resistance to limiting the immunities of heads of state is likely to persist, narrow exceptions for grave crimes could be agreed on, provided careful diplomacy was employed.

Capacity-building and Specialization

Donor states and international organizations would be encouraged to support and train specialized national units to investigate international crimes, provide protection to witnesses, and carry out difficult trials. Peer assistance schemes and sharing of forensics would decrease the temptation to abuse UJ as political theater.

Cooperative Mechanisms and Transfer of Cases

There is potential for negotiating cooperative mechanisms for transferring cases to international tribunals or other countries with capacity as long as fair trials are guaranteed through such mechanisms. This can be done while ensuring respect for sovereignty.

Transparent Processes with Victim/Civil Society Involvement

Reporting about ongoing UJ investigations in an open and transparent manner, along with victim and civil society participation, not only improves the process' legitimacy, but also makes clear that the prosecutions will not be politically motivated.

Conditional Use of Hybrid Courts

Hybrid courts have shown their ability to find the right balance between local legitimacy and international standards. Therefore, it might make sense to design hybrid courts according to the specific context to address issues of sovereignty.

Compromises on Political Grounds

In situations where the prosecution of war criminals would lead to the breakdown of tenuous peace processes, a compromise may be made, e.g., deferred prosecutions, or a combination of truth commissions and limited amnesties (for lesser offenders).

Tradeoffs are inevitable with each protection measure. For example, tight presence rules make UJ's reach narrow but improve respect for sovereignty while the provision for mandatory oversight prevents any abuses that could arise but may delay prosecution proceedings. Consequently, policy tool design should be context-sensitive. This refers to considering the types of criminal activities, the country's capacity, its political atmosphere, and the victims' needs. A combination of all these elements will bring forth an effective way to achieve both goals.

13. Questions to be Addressed

How should the international community define the precise scope of crimes subject to universal jurisdiction under customary international law, and should this definition be codified in a binding international instrument?

What should be the relationship between universal jurisdiction and primary jurisdiction bases such as territoriality and nationality — specifically, should universal jurisdiction be explicitly limited to a measure of last resort, and if so, what procedural mechanisms would ensure that this subsidiarity principle is genuinely observed rather than applied selectively?

How can the international community prevent the selective and politically motivated application of universal jurisdiction, and what international supervisory or oversight mechanisms, if any, should be established to review the exercise of universal jurisdiction by domestic courts?

What is the appropriate relationship between state immunity — including the immunity of sitting heads of state, heads of government, and foreign ministers — and the exercise of universal jurisdiction, and how can the international community close the temporal impunity gap created by *ratione personae* immunity without undermining the principle's foundational role in protecting the effective conduct of international relations?

What additional obligations should states have in terms of international cooperation—including but not limited to extradition, mutual legal assistance, evidence sharing, and the conduct of domestic proceedings — when they choose to exercise or decline to exercise universal jurisdiction, and how can the *aut dedere aut judicare* principle be more effectively implemented?

How should universal jurisdiction interact with domestic peace processes, national reconciliation mechanisms, and transitional justice arrangements, and under what circumstances, if any, should international or foreign accountability mechanisms defer to domestic non-punitive processes?

What role should regional organizations such as the African Union play in developing and implementing a regional framework for universal jurisdiction, and how can the concerns of the Global South about selective enforcement be meaningfully addressed in any future international instrument or guidelines?

Finally, what concrete steps can the Sixth Committee take in the short and medium term to move beyond the current impasse in discussions and toward meaningful legal clarity on the scope and application of the principle of universal jurisdiction?

14. References

https://en.wikipedia.org/wiki/Universal_jurisdiction

https://en.wikipedia.org/wiki/Rome_Statute

https://en.wikipedia.org/wiki/International_Criminal_Court

https://en.wikipedia.org/wiki/Arrest_Warrant_of_11_April_2000_case

https://en.wikipedia.org/wiki/Aut_dedere_aut_judicare

<https://www.diplomacyandlaw.com/post/the-evolution-of-universal-jurisdiction-in-human-rights-enforcement>

<https://yjil.yale.edu/posts/2025-07-09-from-the-hague-to-national-courts-can-domestic-universal-jurisdiction-deliver>

<https://www.ebsco.com/research-starters/history/rome-statute-international-criminal-court-adopted>

<https://cjl.uchicago.edu/print-archive/revolutions-justice-advancing-rome-statute-system-fight-impunity-future-wars>

https://www.hoover.org/sites/default/files/uploads/documents/0817946020_135.pdf

<https://digital-commons.usnwc.edu/cgi/viewcontent.cgi?article=1415&context=ils>

https://legal.un.org/ilc/texts/instruments/english/reports/7_6_2014.pdf

https://legal.un.org/ilc/documentation/english/a_cn4_571.pdf

<https://www.amnesty.org/en/documents/ior40/001/2009/en/>

https://www.chathamhouse.org/sites/default/files/public/Research/International%20Law/0713bp_prosecute.pdf

https://grokipedia.com/page/Aut_dedere_aut_judicare

<https://medcraveonline.com/SIJ/elements-of-universal-jurisdiction-in-criminal-matters-rome-statute-1998-and-domestic-law-in-the-colombian-case.html>

<https://press.un.org/en/2021/gal3642.doc.htm>

<https://press.un.org/en/2022/gal3662.doc.htm>

<https://press.un.org/en/2020/gal3624.doc.htm>

<https://press.un.org/en/gal3723.doc.htm>

https://www.un.org/en/ga/sixth/71/universal_jurisdiction.shtml